CHAPTER 6 · DEEP DIVE · HOUSE & DIVIDED

Dred Scott

The Supreme Court tried to settle slavery forever — and pushed the country closer to war instead. 1857.

Name: _____ **Period:** _____ **Date:** _____

The Supreme Court tried to settle slavery forever — and pushed the country closer to war instead. 1857.

What happens when the highest court in the land tries to end a political fight by law — and gets it catastrophically wrong?

Who Was Dred Scott?

THE MAN

Dred Scott was an enslaved man whose owner, an army doctor, had taken him to live for years in Illinois and the Wisconsin Territory — where slavery was illegal.

When they returned to Missouri, Scott sued for his freedom, arguing a simple point: living on free soil had made him free. His case climbed all the way to the Supreme Court.

Dred Scott — photograph, c. 1857, public domain (Library of Congress / Missouri Historical Society).

Dred Scott

THE PLAINTIFF

He asked the courts one question: if I lived for years where slavery was banned, am I not free?

Dred Scott — photograph, c. 1857, public domain (Library of Congress / Missouri Historical Society).

Three Doors Slammed

1857 · THE RULING

Chief Justice Roger Taney and the Court didn't just rule against Scott. They went much further, and shut three doors at once: Black Americans could not be citizens and so could not even sue; living on free soil did not make Scott free; and Congress had no power to ban slavery in any territory — making the Missouri Compromise unconstitutional.

In one decision, the Court declared that slavery could not be kept out of any western territory. Popular sovereignty, the Missouri Compromise, the Republican Party's whole platform — all of it, the Court said, was illegal.

Roger B. Taney — photograph, public domain (Library of Congress).

Chief Justice Roger B. Taney

THE AUTHOR OF THE OPINION

A Southerner who hoped to end the slavery dispute for good — and instead poured fuel on it.

Roger B. Taney — photograph, public domain (Library of Congress).

CHIEF JUSTICE TANEY, MAJORITY OPINION · 1857

They had … been regarded as beings of an inferior order … so far inferior, that they had no rights which the white man was bound to respect.

A Decision That Settled Nothing

THE BACKLASH

The South rejoiced; the North was enraged. Far from ending the argument, the ruling convinced many Northerners that a “Slave Power” now controlled the courts, the presidency, and the Constitution itself.

It made the Republican Party stronger, not weaker — and it made compromise look impossible. If even the Supreme Court said slavery could go anywhere, what was left to negotiate?

Roger B. Taney — photograph, public domain (Library of Congress).

Read the Ruling

YOUR TURN

You'll read Taney's own words and the words of the justice who dissented — and practice the historian's skill of document analysis: figuring out exactly what a source claims, and what it leaves out.